

25STCV29354 25STCV29354

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Case Number: 25STCV29354 Hearing Date: August 10, 2026 Dept: 514

Batbaatar v. Los Angeles Unified

School District

25STCV29354

Motion of Defendant STAR, Inc. to Strike Portions of First Amended Complaint

Motion of Defendants Robin Wynne Davis, Bronda Everett,
and Leslie Rivera to Strike Portions of First
Amended Complaint

Tentative Ruling

The motion to strike is granted
in part (with leave to amend) and denied in part.

Background

This case arises out of an alleged sexual
assault of a kindergarten student by another student.

On October 7, 2025, Dolgormaa Batbaatar,
by and through her Guardian ad Litem, Oyuntsetseg Enkhtuvshin ("Plaintiff"), filed
the complaint in this action.

On March 9, 2026, Plaintiff filed
a First Amended Complaint (the "FAC").

In the FAC, Plaintiff names as defendants Los Angeles Unified School

District ("LAUSD"), Hancock Park Elementary School, Robin Wynne Davis ("Davis"), Bronda Everett ("Everett"), Leslie Rivera ("Rivera"), STAR, Inc. dba STAR Education ("STAR"), and Does 1 through 50.

Plaintiff asserts causes of action for (1) negligence (against all defendants except STAR), (2) negligent supervision of students and staff (against all defendants except STAR), (3) negligent hiring, training and retention (against LAUSD and Hancock Park Elementary School), and (4) negligence (against STAR).

On July 1, 2026, LAUSD filed a cross-complaint against STAR.

Currently before the Court and set for hearing on August 10, 2026, are two motions.

First, on May 8, 2026, STAR filed a motion to strike. Plaintiff filed an opposition on June 15, and STAR filed a reply on June 22.

The hearing was initially scheduled for June 29 and was continued.

On July 22, 2026, STAR and Plaintiff filed a joint meet-and-confer declaration.

Second, on June 1 Defendants Davis, Everett, and Rivera (collectively, the "Employee Defendants") filed a motion to strike. Plaintiff filed an opposition on July 28, and the Employee Defendants filed a reply on August 3.

The hearing on this motion was noticed for August 10.

Trial is set for January 18, 2028.

Legal Standard

Under Code of Civil Procedure section 435, "Any party, within the time allowed to

respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1).)

Code

of Civil Procedure section 436 provides:

“The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a)

Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b)

Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

(Code

Civ. Proc., § 436.) In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.)

Meet and Confer Requirement

Before a motion to strike is filed, the parties must “meet and confer in person, by telephone, or by video conference.”

(Code Civ. Proc., § 435.5, subd. (a).) This requirement has been satisfied. (Joint Decl. [re STAR motion, ¶¶ 2-4; Gebreestifanos Decl., ¶ 9.]

Discussion

Defendant

STAR moves to strike from the FAC the prayer for punitive damages (page 8, line 23) and for “attorney’s fees” (page 8, line 24). So do the Employee Defendants.

Punitive Damages

To recover

punitive damages in a tort action, Civil Code section 3294 requires a plaintiff to prove by clear and convincing evidence “that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (a); see also *College Hosp., Inc. v. Super. Ct.* (1994) 8 Cal.4th 704, 721; *Smith v. Super. Ct.* (1992) 10 Cal.App.4th 1033, 1042.)

“Malice” is defined in section 3294, subdivision (c)(1), as “conduct which is intended by the defendant to cause injury” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.”

“Oppression” is defined in section 3294, subdivision (c)(2), as “despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of that person’s rights.”

“Fraud” is defined in section 3294, subdivision (c)(3), as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.”

The term “despicable conduct,” as used in subdivisions (c)(1) and (c)(2), has been defined in the case law as actions that are “base,” “vile,” or “contemptible.” (See, e.g., *College Hospital*, supra, 8 Cal.4th at p. 725; *Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc.* (2000) 78 Cal. App. 4th 847, 891; see also CACI 3940 [“Despicable conduct is conduct that is so vile, base, or contemptible that it would be looked down on and despised by reasonable people.”].)

A plaintiff seeking punitive damages must include in the complaint “specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious.” (*Today’s IV, Inc. v. Los Angeles County Metropolitan Transit Authority* (2022) 83 Cal.App.5th 1137, 1193; see also *Anschutz Entertainment Group, Inc. v. Snapp* (2009) 171 Cal.App.4th 598, 643; *Smith*, supra, 10 Cal.App.4th at pp. 1041-1042; 1

Weil & Brown, California Practice Guide: Civil Procedure Before Trial (2025), ¶ 6:158.). “Punitive damages may not be pleaded generally.” (Today’s IV, Inc., supra, 83 Cal.App.5th at p. 1193; see also Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1055–56.)

Pleading

negligence, gross negligence, or even recklessness is not sufficient. (Dawes v. Super. Ct. (1980) 111 Cal. App. 3d 82, 87.) Rather, a plaintiff must allege facts demonstrating that the defendant intended to cause harm to plaintiff or “acted in such an outrageous and reprehensible manner that the jury could infer that [the defendant] knowingly disregarded the substantial certainty of injury to others.” (Id. at p. 90; see also, e.g., American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton (2002) 96 Cal.App.4th 1017.)

Additional requirements apply when a plaintiff seeks to recover punitive damages against an employer for the acts of an employee. As set forth in Civil Code section 3294, subdivision (b):

“An employer shall not be liable for [punitive] damages ... based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

Here, there is no

question that Plaintiff alleges serious injuries resulting from serious wrongdoing. But as against Defendant

STAR, Plaintiff alleges negligence: the breach of a duty of care by failing to protect against a risk that was known or should have been known. (E.g., FAC, ¶¶ 17, 38, 42-43.) Plaintiff does not allege oppression, fraud, or malice by STAR. Moreover, and independently, to the extent that Plaintiff seeks to impose punitive damages against STAR for the conduct of its employees, Plaintiff does not allege that Defendant STAR acted with advance knowledge of the unfitness of any employee and nonetheless employed the person with a conscious disregard for the rights

and safety of others.

This defect cannot be cured through general pleading of the oppression, fraud, or malice. As set forth in the case law cited above, Plaintiff must include in the complaint specific factual allegations that, if proven, would be sufficient to shown oppression, fraud, or malice.

The motion of STAR to strike the prayer for punitive damages is granted.

Leave to amend is granted. Although it is unclear to the Court whether this defect can be cured, the Court will give the Plaintiff the opportunity to do so, particularly given the liberal standard for granting leave to amend.

With regard to the motion of the Employee Defendants, Plaintiff concedes that the motion should be granted based on the allegations in the Complaint. The motion of the Employee Defendants is granted. Plaintiff asks that the motion be granted without prejudice; Plaintiff is granted leave to amend.

Attorney's Fees

"California follows what is commonly referred to as the American rule, which provides that each party to a lawsuit must ordinarily pay his own attorney fees." (Trope v. Katz (1995) 11 Cal.4th 274, 278–79.) Attorney's fees are recoverable by a party only when authorized by contract, statute, or law. (Code Civ. Proc., §§ 1021, 1033.5., subd. (a)(10).)

Plaintiff argues that attorney's fees can be recovered in this matter under Code of Civil Procedure section 1021.5. Section 1021.5 provides, in pertinent part:

"[A] court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether

pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. ...”

(Code Civ. Proc.,
§ 1021.5.)

The Court has a healthy degree of skepticism regarding whether Plaintiff here will be able to establish each of the statutory conditions in the Code and recover attorney's fees under section 1021.5. But the Court's skepticism about the ultimate result is not a basis to strike a portion of a pleading and preclude Plaintiff from making the effort to satisfy the statute. Protecting young students from sexual assault is plainly an important right affecting the public interest, and at this time the Court determines that Plaintiff has sufficiently stated, as a matter of pleading, a basis for the recovery of attorney's fees. Whether the evidence will ultimately support such an award will be determined at a later stage of the proceedings.

The motion to strike the prayer for attorney's fees is denied.

The Court also notes that in opposition to the motion of the Employee Defendants, Plaintiff states that there is a right to recover attorneys' fees under the Tom Bane Civil Rights Act. In the Complaint, however, Plaintiff does not bring any claim under this statute. The Court expresses no views on whether Plaintiff could assert such a claim.

To the extent that Defendant STAR or the Employee Defendants also seek to strike Plaintiff's prayer to recover costs, that request is also denied. If Plaintiff prevails, Plaintiff will be permitted to seek costs under Code of Civil Procedure section 1032, subdivision (b).

Conclusion

The Court GRANTS IN PART the motion of Defendant STAR, Inc. to strike portions of the First Amended Complaint.

The Court GRANTS IN PART the motion of Defendants Robin Wynne Davis, Bronda Everett, and Leslie Rivera to strike portions of the First Amended Complaint.

The Court
STRIKES from the First Amended Complaint the prayer for punitive damages (page 8, line 23).

The motion is
otherwise denied.

The Court
GRANTS Plaintiff leave to file a Second Amended Complaint by no later than August 31, 2026, solely for the purpose of addressing the deficiencies in the pleading of the claim to recover punitive damages.

Moving party
is ordered to give notice.